

25SMCV05627 25SMCV05627

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This is a demurrer by LAUSD.

The underlying complaint alleges liability for two distinct reasons. The first is that PG was bullied by classmates and defendant did not do what was appropriate to prevent it. The second is that during the Palisades fire, defendant did not timely evacuate the school. They are in the same cause of action, but the court sees that as artful pleading. A plaintiff cannot defeat a demurrer by joining together into one cause of action that which ought to be separate. And, even to the extent that the two issues are properly joined, the court the motion to strike accomplishes the same goal.

The demurrer is OVERRULED as to the bullying argument. And defendant does not really press that issue. There is enough here to get by demurrer. That said, though, the court is inclined to SUSTAIN as to the NIED cause of action on that subject. If there is negligence—either direct or through negligent hiring or supervision—then there is, but the separate emotional distress cause of action seems to be just another form of the main tort.

The second ground—the evacuation—is different. Defendant has raised two sorts of claims here. The first is that it is immune from discretionary acts. The second is that this is like firefighting, and there is immunity as to that. The court tends to agree, at least with the first argument. Government Code section 820 provides that a public employee is “not liable for an injury resulting from his act or omission where the act or omission was the result of the exercise of the discretion vested in him, whether or not such discretion be abused.” A school official has to weigh many factors when deciding whether to evacuate. To be sure, there are some instances where the answer is so obvious that there is

just no doubt about it. For example, if the Fire Department issued an order (not an advisory) that the school evacuate but the principal or LAUSD simply decided to ignore the order it is hard to see how the discretionary act doctrine would shield the defense because in light of the order, there is no discretion to exercise.

But no one is alleging that.

Rather, plaintiff claims that the signs were all there and other schools had evacuated but plaintiff's school did not.

The court cannot second-guess that decision. As defendant states, there are myriad factors that go into the decision, and it certainly seems to be discretionary as to when an evacuation is necessary. And

where the employee is immune from liability, so is the government under section 815.2(b). The court is aware of

plaintiff's argument that the discretionary decision doctrine is reserved for policy decisions committed to another branch.

That is too cramped a reading of the statute. The doctrine is not limited to rulemaking types of decisions; it applies to any decision where discretion is vested in a public official, and the decision when to evacuate in an emergency is, in the court's view, such a decision. Because

the court has sustained the demurrer on the discretion argument, the court need not reach the question whether this is also firefighting activity. Absent pleading some facts that would demonstrate that this is not a discretionary type of decision, the court is inclined to SUSTAIN the demurrer.

Therefore, the demurrer is SUSTAINED WITH 30 DAYS' LEAVE TO AMEND as to the part of the complaint dealing with the evacuation and the cause of action for NIED and it is OVERRULED as to the part of the complaint alleging failure to prevent the bullying activity.

And because of that, the court need not address the fire-fighting argument. 30 days' LEAVE TO AMEND IS

GRANTED to allow plaintiff to plead, if plaintiff can, facts that would take this out of the policy or discretionary realm.

The motion to strike is MOOT.